

SENIOR SECURED CREDIT AGREEMENT

dated as of 15 March 2024

among MERIDIAN LOGISTICS HOLDINGS LTD, as Borrower,
the Lenders party hereto, and NORTHWALL AGENCY SERVICES LTD, as Agent

USD 120,000,000 Senior Secured Term Loan Facility (Facility B)

ARTICLE I — DEFINITIONS AND INTERPRETATION

Section 1.1 Defined Terms. In this Agreement, unless the context otherwise requires:

“Available Liquidity” means, at any time, the aggregate of unrestricted cash and Cash Equivalents of the Group plus undrawn amounts available under committed facilities.

“EBITDA” means, for any Relevant Period, the consolidated operating profit of the Group before interest, tax, depreciation and amortisation, adjusted for exceptional and non-recurring items in accordance with the Accounting Principles.

“Interest Cover Ratio” means, in respect of any Relevant Period, the ratio of EBITDA to Net Finance Charges for that Relevant Period.

“Leverage Ratio” means, as at the last day of any Relevant Period, the ratio of Total Net Debt to EBITDA in respect of the Relevant Period ending on such date.

“Net Finance Charges” means, for any Relevant Period, the aggregate interest and other financing charges accrued by the Group, net of interest income.

“Relevant Period” means each period of twelve consecutive months ending on the last day of a financial quarter.

“Total Net Debt” means, at any time, the aggregate outstanding financial indebtedness of the Group less unrestricted cash and Cash Equivalents.

ARTICLE VI — FINANCIAL COVENANTS

The Borrower undertakes to comply with the financial covenants set out in this Article VI for so long as any amount is outstanding under the Facility. Compliance shall be tested quarterly by reference to each Compliance Certificate.

Section 6.1 Leverage Ratio.

The Borrower shall ensure that the Leverage Ratio (Total Net Debt to EBITDA) as at the last day of each Relevant Period shall not exceed 3.50:1.00. The Leverage Ratio shall be tested quarterly on a rolling twelve-month basis by reference to the most recent Compliance Certificate delivered pursuant to Section 5.2.

Section 6.2 Interest Cover Ratio.

The Borrower shall ensure that the Interest Cover Ratio (EBITDA to Net Finance Charges) for each Relevant Period shall not be less than 4.00:1.00, tested quarterly on a rolling twelve-month basis. A failure to satisfy this Section 6.2 shall constitute a Default subject to the cure provisions of Section 7.4.

Section 6.3 Minimum Liquidity.

The Borrower shall maintain, at all times, Available Liquidity of not less than USD 8,000,000. The Borrower shall notify the Agent promptly upon becoming aware that Available Liquidity has fallen, or is reasonably likely to fall, below USD 9,000,000.

ARTICLE VII — CURE RIGHTS AND DEFAULT

Section 7.4 Equity Cure.

In respect of any breach of Section 6.1 (Leverage Ratio), the Borrower may cure such breach by procuring additional equity within 20 Business Days of the relevant Compliance Certificate date (an “Equity Cure”). No more than two Equity Cures may be exercised in any period of four consecutive quarters, and the proceeds of any Equity Cure shall be applied in reduction of Total Net Debt for the purpose of recalculating the Leverage Ratio.

Section 9.1 Events of Default.

It shall be an Event of Default if the Borrower fails to comply with any financial covenant in Article VI and, where a cure right applies under Section 7.4, fails to cure within the permitted period. Upon the occurrence of an Event of Default which is continuing, the Agent may, and shall if so directed by the Majority Lenders, declare all outstanding amounts immediately due and payable.